TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: July 6, 2026
Time: 2:00 PM

If you are submitting to the tentative, please call the Clerk at (657) 622-5617.

Appearances may be IN PERSON or through ZOOM. If appearing by ZOOM, go to https://www.occourts.org/media-relations/civil.html and click on the yellow box that reads: "CLICK HERE TO APPEAR FOR THE ONLINE CHECK-IN/ZOOM PILOT PROGRAM." Call the department with any questions.

COURT REPORTERS: Official Court Reporters (i.e. Court Reporters employed by the Court) are NOT typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- For additional information, please see the Court's website at Court Reporter Interpreter Services for additional information regarding the availability of Court Reporters.

PUBLIC ACCESS: The public may attend the ZOOM session by telephone. Call the department for a call-in number.

#		
1	Moreno v. Kim, et. al.	The motion by Defendants Mong Suh Kim and Aiza Kim for an award of attorney's fees against plaintiff Marvin Moreno is **DENIED**, as set forth herein. The within action arises from alleged misrepresentations, along with concealment of facts, regarding water leaks and damage in the sale of an Anaheim home in 2023. On December 12, 2025, the court ordered the entire action dismissed, without prejudice, as a result of plaintiff failing to appear at the October 17, 2025 Status Conference. In this motion, Defendants seek an award of attorney's fees based on their assertion they are the prevailing party and entitled to fees "pursuant to ¶22 of the attached 'California Residential Purchase Agreement and Joint Escrow Instructions'." (Motion at 3:5-6) Civil Code §1717(a) provides: "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs."

		“[I]n deciding whether there is a ‘party prevailing on the contract,’ the trial court is to compare the relief awarded on the contract claim or claims with the parties' demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources. The prevailing party determination is to be made only upon final resolution of the contract claims and only by ‘a comparison of the extent to which each party ha [s] succeeded and failed to succeed in its contentions.’ [Citation.]” (*Hsu v. Abbara* (1995) 9 Cal.4th 863, 876.) Here, the defendants have not achieved a dispositive victory. While the case was dismissed because of plaintiff’s failure to appear, plaintiff can re-file the action as the dismissal was without prejudice. It therefore cannot be said there has been a “final resolution of the contract claims.” (*Hsu* at 876) Accordingly, because defendants have not established they are the prevailing party under Section 1717, the motion for attorney’s fees is DENIED. Plaintiff is ordered to give notice of this ruling.
2	Kopenhefer v. Ford Motor Company	The demurrer filed by defendant Ford Motor Company (Ford) directed to the fourth cause of action in the Third Amended Complaint (TAC) of plaintiff Ben Kopenhefer (Plaintiff) is **SUSTAINED without leave to amend**. Ford is to file an answer to the TAC within 20 days. Ford demurs to the fourth cause of action for fraudulent inducement – concealment. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of fact.” (*Hambrick v. Healthcare Partners Medical Group, Inc.* (2015) 238 Cal.App.4th 124, 162.) Fraud claims must be pled with particularity. Every element of the cause of action for fraud must be alleged in full, factually and specifically. The policy of liberal construction of pleading will not be invoked to sustain a pleading defective in any material respect. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1332.) “The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) “[T]he requirement that fraud must be pleaded with specificity applies equally to a cause of action for

		fraud and deceit based on concealment." (*Cansino v. Bank of Am.* (2014) 224 Cal.App.4th 1462, 1472.) The fraud claim is based on allegations that Ford concealed from Plaintiff that Plaintiff's vehicle suffered from the "Transmission Defect." As Ford points out, the TAC still does not allege that Plaintiff's vehicle experienced any of the purported symptoms related to the defect, beyond the vague allegation that "Defendant's technicians inspected the Vehicle, and indicated that the transmission required attention." The cases cited by Plaintiff are inapposite in that the plaintiffs' vehicles in those cases each suffered from the undisclosed alleged transmission defects. *See Avila v. Ford Motor Co.* (N.D. Cal. 2026) 821 F.Supp.3d 1113, 1117 ["Avila's F-150 had a 10R80 automatic transmission, which he says had problems including "harsh shifting, clutch engagement issues, and material debris."]; *Dhital v. Nissan N. Am., Inc. (*2022) 84 Cal.App.5th 828, 833 ["plaintiffs took the car to an authorized Nissan repair facility because of transmission problems, including stalling, jerking, and lack of power"]; *Ford Motor Warranty Cases*,(2023) 89 Cal.App.5th 1324, 1330 ["Plaintiffs experienced problems with the transmissions in their Ford Focus and Fiesta model vehicles."]. Plaintiff has had three opportunities to amend the fraud cause of action but still has failed to state a viable claim. Accordingly, the demurrer to the fourth cause of action for fraudulent inducement – concealment is **SUSTAINED without leave to amend**. (*Heritage Pac. Fin'l, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 994 [court did not abuse discretion in denying leave to amend where, despite ample opportunity, plaintiff failed to demonstrate it could cure defect].) Counsel for Ford shall give notice.
3	Martlaro v. American Honda Motor Company, Inc.	The Motion to Reopen Discovery, etc., filed on 4/23/26 by Defendant American Honda Motor Company, Inc. ("Honda") is **GRANTED**. The Motion demonstrates that Plaintiff Samuel J. Martlaro ("Plaintiff") designated five experts on 3/16/26, but when depositions were noticed for each, Plaintiff served substantial objections, refused to produce them as noticed, and then failed to confer when asked to do so. (Sadanaga Decl., ¶¶ 2-7, Exs. 1-12.) Plaintiff does not dispute that Honda is entitled to take the depositions of Plaintiff's experts, and has failed to justify its conduct in failing to promptly make them available. The Motion is therefore **GRANTED**. Plaintiff is to make all of the designated experts available for deposition within the next 10 business days, and produce the categories of requested documents for each no later than three business days prior. <u>The parties should be prepared to set specific dates at the time of the hearing</u>. Honda's sanctions request is **GRANTED**, in the amount of $2,524. Objections to the depositions were served on March 26, 2026, but no alternative dates were offered. The following day, Honda

		requested alternative dates by email, but no response was provided. Honda again renewed its request for alternative dates by email on April 16, 2026, but still no response was provided. A telephone call regarding the matter was also unreturned. These sanctions are imposed against Plaintiff and his counsel of record, Quill & Arrow, LLP, jointly and severally, and are to be paid to Honda, through its counsel of record, within 20 days after service of notice of this ruling. Counsel for Honda is to give notice.
4	City of Garden Grove v. Weber	Before the Court at present is the "Motion to Reduce the Excessive and Unconstitutional Administrative Fines Issued by the City of Garden Grove," filed on 6/8/26 by Bradley K. Weber ("Owner"). The Motion is **GRANTED IN PART**, as to the $5,600 sum identified by the City of Garden Grove ("City") for four citations issued prior to 2020, and for one $1,600 duplicate citation, but otherwise **DENIED**. City has asserted in its Opposition that Owner failed to pursue the administrative remedies available to him regarding the citations he now challenges, so that the court is without jurisdiction to overturn the administrative fines he disputes here. True, exhaustion of administrative remedies does not deprive a court of subject matter jurisdiction; the exhaustion requirement may be waived and is subject to a number of exceptions. In the present case, Owner does not dispute that he failed to pursue the administrative remedies available to him, arguing instead that doing so would have been futile. But Owner has failed to show that this was so. Owner's Request for Judicial Notice, filed as ROA 406, is **GRANTED** as to the existence of the records under Ev. Code §§ 452(c) and (d). City is to give notice of this ruling.
5	Objective Standard Institute v. Barney et. al.	Plaintiff Objective Standard Institute move for an order sealing confidential attorney-client privileged information contained in portions of the motion to disqualify counsel, the supporting declaration of Jason Haas and exhibits D, E, G and H attached thereto. For the reasons set forth below, the motion is DENIED. "[A] reasoned decision about sealing or unsealing records cannot be made without identifying and weighing the competing interests and concerns. Such a process is impossible without (1) identifying the specific information claimed to be entitled to such treatment; (2) identifying the nature of the harm threatened by disclosure; and (3) identifying and accounting for countervailing considerations. The burden of presenting information sufficient to accomplish the first two steps is logically placed upon the party seeking the sealing of the documents, who is presumptively in the best position to know what disclosures will harm him and how. This means at a minimum that the party seeking to seal documents, or maintain them under seal, must come forward with a specific enumeration of the facts

		sought to be withheld and specific reasons for withholding them." (*H.B. Fuller Co. v. Doe* (2007) 151 Cal.App.4th 879, 894.) Here, Plaintiff failed to meet its burden identifying any harm threatened by disclosure. The specific information sought to be sealed is already publicly available. Exhibits D, E and G have been filed in federal court, and Plaintiff concedes the information has also been disclosed in pleadings filed in this court, including in the declaration of Ann Sanz and OSI's evidentiary objections to the Ann Sanz declaration. (ROA 46, 52; see Motion, p. 6.) There is no evidence Plaintiff ever filed a motion to seal those documents. As such, the Court finds no prejudice to Plaintiff if the records are not sealed. (Cal. Rules of Court, rule 2.550(d)(3).) The motion is therefore **DENIED**. Counsel for Plaintiff shall provide notice of this ruling.
6	Rojas v. Alamirad Dental Corp	Plaintiff Elizabeth Rojas' unopposed motion to strike the answer of defendant Alamarid Dental Corp. is **GRANTED**, with 30 days' leave to amend. Defendant Farzan Alamarid (Alamarid) filed the answer "individually and on behalf of Alamarid Dental Corp." (ROA 51.) However, "a corporation must be represented in court by an attorney." (*Gutierrez v. G & M Oil Co., Inc.* (2010) 184 Cal.App.4th 551, 564.) A corporate officer, shareholder, or employee who is not a licensed attorney may not file pleadings or otherwise appear for the corporation. (*Merco Construction Engineers, Inc. v. Municipal Court* (1978) 21 Cal.3d 724, 729-731.) Alamirad did not file the answer as counsel of record for Alamirad Dental Corp. and instead filed the pleading in pro per. The motion to strike is therefore granted. (Code of Civ. Proc. § 435.) Defendant shall have 30 days' leave to amend. (*CLD Construction, Inc.* (2004) 120 Cal.App.4th 1141, 1152 [pleading filed by self-represented corporation is a curable defect].) Counsel for Plaintiff shall give notice of this ruling.
7	Salemi v. Pappas	The motion for attorneys' fees filed by defendants Kemp Ipsen and Maria Elena Ipsen (collectively, Ipsen Defendants) is **GRANTED**. In an action to enforce a contract authorizing an award of fees and costs to one party, the party "prevailing on the contract" is entitled to reasonable fees in accordance with Civil Code section 1717. (*Santisas v. Goodin* (1998) 17 Cal.4th 599, 615–617; *Exxess Electronixx v. Heger Realty Corp.* (1998) 64 Cal.App.4th 698, 706–707.) "[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (Civ. Code § 1717(b)(1).) "If a contractual attorney fee provision is phrased broadly enough…it may support an award of attorney fees to the prevailing party in an action alleging both contract and tort claims[.]" (*Santisas, supra,* 17 Cal.4th at 608; see also, *Thompson v. Miller* (2003) 112 Cal.App.4th 327, 336.)

		Courts apply a lodestar method to calculate reasonable attorneys' fees. (*Meister v. U.C. Regents* (1998) 67 Cal.App.4th 437, 448-49.) The court determines a lodestar figure based on a careful compilation of the time spent and reasonable hourly compensation of each attorney involved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 48-49.) Here, Ipsen Defendants are clearly the prevailing party as the Court entered judgment for Defendants and against plaintiff Jay Arrash Salemi (Plaintiff) on each and every cause of action. (See ROA 229.) The contract upon which Plaintiff's claims are based contains a broad attorneys' fees clause which encompasses all causes of action asserted against Ipsen Defendants in this matter. (See Complaint, Ex. A [California Residential Purchase Agreement and Joint Escrow Instructions, ¶ 25].) As such, Ipsen Defendants are entitled to reasonable attorney's fees based on the above provision of the contract for both the contract and tort claims. (*Santisas, supra,* 17 Cal.4th at 608.) The Court finds the claimed hourly rates reasonable and adequately supported by counsels' declarations. (See Martinez Decl., ¶¶ 4, 6; Morasse Decl., ¶ 4; see also, *Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1160-1161—prevailing attorneys' declarations attesting based on their years of experience practicing law in the area, their standard billing rates were reasonable, were sufficient to support a finding that hourly rates were reasonable.) The Court has reviewed counsels' declarations and the billing records for Fox Rothschild LLP and Morasse Collins & Clark and determines the time expended by both firms to be generally reasonable with no obvious duplication or padding. While the total amount of fees sought is substantial, the amount of time incurred is supported by counsels' declarations and the detailed billing records. Plaintiff filed no opposition and thus has raised no argument to dispute the reasonableness of the fees claimed. Based on the foregoing, the motion is **GRANTED**. Ipsen Defendants are awarded attorneys' fees against Plaintiff in the requested sum of $80,173.59, which is comprised of $20,385.84 for Fox Rothschild LLP and $59,787.75 for Morasse Collins & Clark. Counsel for Ipsen Defendants shall submit a proposed order and shall give notice of this ruling.
8	Freeman v. Primoris Services Corp.	O/C
9	Ahmadi v. TI Properties, Inc. et al	Before the Court is the Demurrer to First Amended Complaint filed on 4/3/26 by Defendant Tulio Illiano ("Illiano"), as to the First Amended Complaint filed on 3/23/26 by Plaintiff Zaki Ahmadi ("Plaintiff"). This Demurrer, which is directed to the First, Second, Third and Fourth causes of action (each a "COA") in the FAC, is **SUSTAINED** as to each of those COAs.

		For COA 1, alter-ego is sufficiently alleged. (FAC ¶¶ 8, 11.) For pleading purposes on an alter-ego claim, it is sufficient to allege only ultimate rather than evidentiary facts. (*Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236.) However, the FAC fails to state how the contract at issue was allegedly breached. The assertions in the FAC at ¶¶ 29-32 do not identify any contractual obligation that any defendant failed to fulfill. In addition, as the Opposition concedes, although the FAC states that the contract at issue is attached, the FAC does not attach it. The Demurrer as to COA 1 is therefore **SUSTAINED**. For COAs 2-4, the FAC again fails to state any cognizable claim. For a fraud claim, every element must be alleged in full, factually and specifically: the policy of liberal construction of pleading will not be invoked to sustain a pleading defective in any material respect. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) The particularity requirement necessitates pleading facts that show how, when, where, to whom, and by what means the representations were tendered. (*Id.*) For a negligent misrepresentation claim, the defendant need not have knowledge of the falseness of the representation or the intent to defraud. But a negligent misrepresentation must ordinarily be as to past or existing material facts: predictions as to future events, or statements as to future action by some third party, are deemed opinions, and not actionable fraud. (*Tarmann*, supra, 2 Cal.App.4th at 158.) Here, Plaintiff has again just made assertions as to multiple defendants, without adequate specificity. Plaintiff must allege what specifically was said, by whom, to whom, when and where that occurred, and whether it was oral or written. Plaintiff also appears to have based these claims entirely on predictions as to future events, or statements as to future action by some third party, which are deemed opinions, and not actionable fraud. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 158.) Greater specificity is also required for the other elements of each of these claims, including the basis for any claim of reasonable reliance. The Demurrer is therefore **SUSTAINED** as to COAs 2-4. Plaintiff is granted 20 days leave to amend. However, Plaintiff should carefully consider any further amendment and fully plead all facts to support these claims, as further leave to amend should not be assumed. The clerk is to give notice of this ruling.
10	Eymert v. Bok Senior Hotel, et al.	The motion of plaintiffs Peter Eymert, by and through his successor-in-interest Karl Eymert; Karl Eymert; and Petra Eymert (collectively, Plaintiffs) for an order granting Plaintiffs' application for separate judgment against defaulted defendant La Habra Villa LLC (La Habra Villa) is **DENIED**. "In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper." (Code Civ. Proc., § 579.)

		"A default judgment may be improper against one of several codefendants if the other has raised defenses which, if proven, would establish the nonliability of the defaulting defendant." (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) ¶ 5:263.) "If it appears that the defaulting defendant's liability is dependent upon the answering defendant being held liable, no default judgment is proper." (Id., ¶ 5:264, citing *Adams Mfg. & Engineering Co. v. Coast Centerless Grinding Co.* (1960) 184 Cal.App.2d 649, 655.) "Similarly, no default judgment can be taken where several defendants are sued on a joint liability, and one of them answers asserting defenses which would exonerate the defaulting defendant from such liability." (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) ¶ 5:266, citing *Mirabile v. Smith* (1953) 119 Cal.App.2d 685, 689.) Here, the complaint and moving papers appear to show that liability of La Habra Villa is dependent upon defendant Bok Senior Hotel, Inc. dba Bok Senior Hotel (Bok Senior Hotel) being held liable. The complaint does not allege misconduct specifically by La Habra Villa. Rather, La Habra Villa is sued as a doe defendant. The complaint alleges Doe Defendants 1 through 10, which includes La Habra Villa, "were the owners, operators, administrators, licensees, and supervisors of BOK SENIOR HOTEL and these individuals each ratified, authorized and/or directed the conduct as hereinafter described and alleged at BOK SENIOR HOTEL, and its respective agents and employees, and are therefore vicariously liable for the acts and omissions of these co-Defendants, their agents, and employees." (Compl., ¶ 7.) The evidence submitted by Plaintiffs all relates to the allegedly negligent care and treatment of decedent Peter Eymert at Bok Senior Hotel. Bok Senior Hotel filed an answer to the complaint in which it denied generally and specifically each and every allegation of the complaint and asserted twenty affirmative defenses. (ROA 167.) Trial in this matter is set to commence on October 5, 2026. As it appears liability of La Habra Villa is dependent upon Bok Senior Hotel being held liable, the Court finds it appropriate to defer default judgment as to La Habra Villa until after trial of the other defendants. Accordingly, the motion for separate judgment is **DENIED**. Counsel for Plaintiffs shall give notice.
11	Reyes v. General Motors, LLC	O/C
12	Southeast Bank v. Lomingkit	The motion to be relieved as counsel of record for defendant Ramher Lomingkit filed by attorney Nicholas Saranto is **DENIED WITHOUT PREJUDICE**.

		Moving counsel failed to file the Declaration in Support of Attorney's Motion to Be Relieved as Counsel (form MC-052) and Proposed Order Granting Attorney's Motion to Be Relieved as Counsel (form MC-053) as required. (See Cal. Rules of Ct., rule 3.1362(c), (e).) In addition, there is no proof of service filed showing Plaintiff's counsel and client Ramher Lomingkit were served with the motion, declaration, and proposed order as required. (See Cal. Rules of Ct., rule 3.1362(d).) Moving counsel shall give notice of this ruling.
13	Perea vs. Manos	Before the court is an unopposed motion filed by attorneys at Easton & Easton, LLP ("Attorneys"), requesting to be relieved as counsel of record for plaintiff Shelby Perea ("Client"). The motion is **GRANTED**. Attorneys have complied with the requirements of California Rule of Court 3.1362, and filed and served forms MC-051, MC-052, and MC-053 on Client and on the other parties in this action. The court finds Attorneys have provided a valid and sufficient reason for requesting to be relieved as counsel for Client. As such, the court **GRANTS** the motion. The court notes the order relieving counsel shall not be effective until Attorneys file with the court a proof of service showing the signed orders granting the motion is served on Client. Until such time, Attorneys shall remain counsel of record. Attorneys are ordered to give notice of this ruling.
14		
15		
16		
17		
18		
19		
20		
21		